



SPONSOR: Sen. Seigfried & Rep. Gorman
Sen. Sturgeon; Rep. Snyder-Hall

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 207

AN ACT TO AMEND TITLE 30 OF THE DELAWARE CODE RELATING TO AVIATION JET FUEL.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 5172(b), Title 30 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows and by redesignating accordingly:

3 § 5172(b). *Exemptions.* – The tax imposed by this subchapter does not apply to aviation jet fuel sold and
4 delivered to and used by any of the following persons or for any of the following circumstances:

5 (4) Purpose of economic development and job creation in the aviation industry in this State. A
6 temporary exemption for a period of time not exceeding more than 5 years may be granted under this
7 paragraph (b)(4). An exemption under this paragraph (b)(4) must be approved by the Council on
8 Development Finance and the Director of Small Business under §§ 8705A and 8707A of Title 29 and §
9 5178 of this title. An exemption under this paragraph (b)(4) may not be approved and must be revoked by
10 the Council on Development Finance and the Director of Small Business to any commercial airline that
11 transports individuals detained by the U.S. Immigration and Customs Enforcement for the purpose of
12 deportation without one or more of the following:

13 a. Presentation of a valid judicial warrant or order issued by a federal judge or
14 magistrate, not including administrative immigration detainers issued by U.S. Immigration and
15 Customs Enforcement.

16 b. Demonstration that the detained individual has been afforded all applicable rights of
17 due process under federal and state law, including the right to counsel and a hearing before an
18 immigration judge.

19 Section 2. This Act takes effect 30 days after its enactment into law.

SYNOPSIS

This Act disqualifies commercial airlines from receiving the aviation jet fuel tax exemption for economic development if they transport ICE detainees for deportation without meeting standards regarding presentation of judicial warrants and due process. This Act takes effect 30 days after its enactment into law.

Author: Senator Seigfried